

26VECV01460 26VECV01460

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C07%2F07%2F2026

Source SHA-256: 9184e523989919e4f8a5e5e8fe1d7284d5938170ffe5c8ad53119a50ddf58f73

Case Number: 26VECV01460 Hearing Date: July 7, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

RENATE MARTIN, by and through her

Successor in Interest Christine Miceli,

Plaintiff,

vs.

SLH AGOURA HILLS MANAGER, LLC, a Limited Liability Company, dba MEADOWBROOK AT AGOURA HILLS; ARHC MBAG8CA01, LLC, a Limited Liability Company, dba MEADOWBROOK AT AGOURA HILLS; JOEYVIC ALVARADO, an individual; TONI MANGANDI DE MONTES, an individual; and DOES 1 to 100, inclusive.

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 26VECV01460

ORDER SUSTAINING IN PART DEFENDANTS ARHC MBAG8CA01, LLC, SLH AGOURA HILLS MANAGER, LLC, AND JOEYVIC ALVARADO'S DEMURRER WITH LEAVE TO AMEND

I. BACKGROUND

This case arises out of Plaintiff Renate Martin's ("Plaintiff") allegedly reckless care and treatment while she was a resident at Meadowbrook, a residential care facility for the elderly ("RCFE"). Plaintiff alleges Meadowbrook is owned and operated by Defendant ARHC MBAG8CA01, LLC ("Facility") and Defendant SLH Agoura Hills Manager, LLC ("Licensee") was the designated license holder for Facility. Plaintiff alleges Joeyvic Alvarado ("Alvarado") was employed by Facility or Licensee as Executive Director. Plaintiff alleges Toni Mangandi De Montes ("Montes") was employed by Facility or Licensee.

Facility, Licensee, and Alvarado demurred to the Complaint.

II. PROCEDURAL HISTORY

On March 11, 2026, Plaintiff filed a Complaint alleging (1) Elder Abuse and Dependent Adult Civil Protection Act; (2) Battery; (3) Negligence; and (4) Breach of Contract.

On April 30, 2026, Facility, Licensee, and Alvarado filed the instant Demurrer.

On June 23, 2026, Plaintiff filed an Opposition.

On June 26, 2026, Facility, Licensee, and Alvarado filed a Reply.

III. MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a)[1].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

The Court finds Facility, Licensee, and Alvarado (jointly "Defendants") complied with their meet and confer obligation. (See Declaration of Lynnette A. Christopoulos filed April 30, 2026, ¶ 5.)

///

IV. LEGAL STANDARD

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).) "A demurrer tests the sufficiency of a complaint as a matter of law." *¿* (Durell v. Sharp Healthcare, *¿*(2010) 183 Cal.App.4th 1350, 1358.) "[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded." *¿* (Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See Blank v. Kirwan, *¿*(1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See SKF Farms v. Superior Court, *¿*(1984) 153 Cal.App.3d 902, 905.) Accordingly, "[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court, *¿*(1986) 180 Cal.App.3d 605, 609-610.)

*¿*Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is

error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

V. ANALYSIS

A. Second Cause of Action for Battery is Sufficient.

“The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” (So v. Shin (2013) 212 Cal.App.4th 652, 668-669.)

Defendants argue this claim fails to state a battery claim because while the Complaint alleges Montes intentionally gave Plaintiff dog food, causing her injury, there are no allegations that Defendants touched Plaintiff. (See Dem. at 5:22-28.) Defendants also argue this claim is superfluous because Plaintiff’s negligence and elder abuse claims rest on this same conduct. (See id., at 6:11-13.)

In opposition, Plaintiff argues because the Complaint adequately alleges each defendant authorized and or ratified Montes’s intentional act of serving dog food to Plaintiff, all named defendants are properly subject to the battery claim. (See Opp. at 4:15-18.) Plaintiff argues the battery claim is not duplicative because it requires different elements and is a distinct theory of recovery. (See id., at 5:11-15.)

In reply, Defendants cite *Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 301-303, for the proposition Montes’ conduct was not within the course and scope of employment and thus Defendants cannot be vicariously liable. (See Reply at 2:4-16.) Defendants also argue Plaintiff insufficiently pleads ratification as she only makes the conclusory allegation that Defendants ratified Montes’ conduct. (See id., at 3:1-3.)

The Court finds the battery claim is insufficient to survive demurrer. The Complaint alleges Plaintiff suffered several violations during her stay at Meadowbrook including: Montes intentionally served dog food to Plaintiff (Compl., ¶ 19); Facility negligently prevented Plaintiff’s fall due to inadequate staffing (see id., ¶ 20); Plaintiff was covered in feces due to Defendants’ lack of care (see id., ¶ 21); and Facility or Licensee employee Karina improperly requested a “withhold food order” which resulted in Plaintiff not being fed for several days (see id., ¶ 22.) The Complaint alleges each defendant authorized or ratified the acts of all employees, agents and co-defendants under their supervision or control. (See id., ¶¶ 8-9, 12.) However, none of these acts constitute a harmful or offensive touching under the law.

The Court SUSTAINS Defendants’ Demurrer to the second cause of action for battery WITH LEAVE TO AMEND.

B. Fourth Cause of Action for Breach of Contract is Sufficient.

To state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

If a breach of contract claim “is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 307.) In some circumstances, a plaintiff may also “plead the legal effect of the contract rather than its precise language.” (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199; see also *Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 401-402.) “[T]o plead a contract by its legal effect, plaintiff must ‘allege the substance of its relevant terms.’” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489, citing *Witkin*.)

Defendants argue the breach of contract claim fails to state a claim against Facility and Licensee because the Complaint fails to attach the Admission Agreement or plead its material terms with any specificity. (See Dem. at 7:4-7.) Defendants also argue the breach of contract claim is improper because it is based on the provision of professional services and must be evaluated based on a professional negligence standard. (See id., at 7:17-20.)

In opposition, Plaintiff argues it is sufficient to plead the legal effect of the contract, which the Complaint does. (See Opp. at 6:25.) Plaintiff argues Defendants provide no authority for the proposition that RCFE custodial care obligations under an Admission Agreement are subsumed by professional negligence. (See id., at 8:1-3, citing *Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992 [holding there is no distinction between “ordinary” and “professional” negligence; there was only one applicable standard of negligence].)

In reply, Defendants reassert Plaintiff fails to attach a copy of the Admission Agreement and that Defendants’ conduct must be evaluated based upon a professional negligence standard. (See Reply at 3:17-19, 4:1-3.)

Here, the Complaint alleges Plaintiff executed an Admission Agreement with Facility and/or Licensee which provided for adequate and competent care, supervision, meals, hygiene, and other services necessary to meet Plaintiff’s needs, in compliance with state law. (See Compl., ¶¶ 54-55.) The Court finds this is sufficient to plead the substance of the contract’s relative terms and its legal effect to survive demurrer. Further, Plaintiff provides no authority supporting its position that Plaintiff cannot plead a breach of contract claim against entity Defendants, Facility and Licensee, for their failure to provide the specific care and services outlined in the Admission Agreement.

The Court **OVERRULES** Defendants’ Demurrer to the fourth cause of action for breach of contract.

VI. CONCLUSION

Based on the foregoing, the Court **SUSTAINS IN PART** Defendants’ Demurrer **WITH LEAVE TO AMEND**.

Plaintiff has leave to file an amended complaint until July 20, 2026.

IT IS SO ORDERED.

DATED: July 7, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.